IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

CP (CAA) No. 21/BB/2018
U/s 230 & 232(1) of the Companies Act, 2013

In the matter of:

M/s. VSL Securities Pvt. Ltd.,
Having registered office at
No.66, Nav Niketan, Ground Floor
K R Road, Basavangudi,
Bangalore- 560 004

- Applicant/Transferor Company 2

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (J)
2. Hon'ble Dr. Ashok Kumar Mishra, Member (T)

Date of Order : 18th December, 2018

Parties/Counsel Present:

For the Petitioner : Shri K.S.Vadivelu

O R D E R

Per: Dr. Ashok Kumar Mishra, Member (T)

1. C.P(CAA) No. 21/BB/2018, is filed by M/s. VSL Securities Pvt. Ltd., U/s 230 & 232(1) of the Companies Act, 2013, by inter alia seeking to the scheme of Amalgamation which is enclosed the application by declaring as so to be binding on the Transferor Company, Transferee Company, Shareholders and all concerned etc.

2. The case is listed for admission on various dates viz. 09.04.2018, 18.04.2018, 31.05.2018, 15.06.2018, 20.07.2018, 10.08.2018, 17.08.2018, 01.10.2018, 26.11.2018, and 18.12.2018. The case is adjourned on various dates at the request of the parties.

2. Heard Shri K.S.Vadivelu, learned Counsel for Petitioner. The Learned Counsel for Petitioner has filed a memo for withdrawal letter dated 18.12.2018 (which is taken on record) which reads as under:

> "We hereby wish to inform that Polson Tie-Up Private limited (hereinafter referred to as the "Transferee Company") and Abhishek Polyplast Private Limited (hereinafter referred to as the "Transferor Company No.1") having their registered office in Kolkata have withdrawn their Merger Petition filed with the Hon'ble NCLT Bench at Kolkata."

Therefore, the Learned Counsel for Petitioner urged the Tribunal to withdraw the Company Petition.

3. In view of the facts and circumstances of the case, CP(CAA) No. 21/BB/2018 is disposed of as withdrawn. No order as to costs.

(Dr. ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESWARA RAO VITTANALA)
MEMBER, JUDICIAL

Raushan